

HOUSE BILL 1308

By Lamberth

AN ACT, to amend Tennessee Code Annotated, Title 8, Chapter 50, Part 8; Title 49, Chapter 1, Part 6; Title 49, Chapter 1, Part 9; Title 49, Chapter 10, Part 14; Title 49, Chapter 16, Part 2; Title 49, Chapter 18, Part 1; Title 49, Chapter 2, Part 1; Title 49, Chapter 3, Part 1; Title 49, Chapter 3, Part 3; Title 49, Chapter 6, Part 10; Title 49, Chapter 6, Part 30; Title 49, Chapter 6, Part 31; Title 49, Chapter 6, Part 41; Title 49, Chapter 6, Part 50; Title 49, Chapter 1, Part 2 and Chapter 1005 of the Public Acts of 2024, relative to education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-50-814(a)(2), is amended by deleting the subdivision and substituting instead:

(2) "Eligible employee" means a teacher, principal, supervisor, or other individual required by law to hold a valid license of qualification for employment in the public schools of this state and who meets the following requirements:

(A) Has a valid license of qualification, or an emergency credential issued by the department of education pursuant to § 49-5-106, required for the position the employee holds;

(B) Has been employed full time with the same local education agency or public charter school for at least twelve (12) consecutive months in a position for which the employee is required by law to hold a valid license of qualification, or an emergency credential issued by the department of education pursuant to § 49-5-106, at the time of the birth, adoption, or stillbirth of the employee's child; and

(C) Has held a valid license of qualification or an emergency credential issued by the department of education pursuant to § 49-5-106, for the entire twelve (12) consecutive months of employment with the local education agency or public charter school.

SECTION 2. Tennessee Code Annotated, Section 8-50-814(d)(2), is amended by deleting the subdivision and substituting instead:

(2) The six (6) work weeks of paid leave granted pursuant to this section do not need to be taken consecutively; provided, that the paid leave granted pursuant to this section is used in increments of no less than one (1) week and is used within twelve (12) months of the birth or stillbirth of the employee's child or the employee's adoption of a newly placed minor child.

SECTION 3. Tennessee Code Annotated, Section 49-1-201(c)(11), is amended by deleting the subdivision and substituting instead:

(11) Upon request of the comptroller of the treasury, report the average daily membership of the preceding year, as determined and taken from the daily membership reports of the teachers and other officers of the various cities and counties, and the school census, as determined by the scholastic census enumeration;

SECTION 4. Section 5 of Chapter 1005 of the Public Acts of 2024, is amended by deleting the amendatory language and substituting instead:

(i) Notwithstanding subsection (a), student achievement, student growth, or any other student data that serves as an indicator of performance for a student who enrolls in, or transfers to, a public school for less than fifty percent (50%) of the school year must not be used to assign a letter grade to the receiving school for purposes of this section. The data described in this subsection (i) may be used to assign a letter grade to

the school in which the student was enrolled for fifty percent (50%) or more of the respective school year.

SECTION 5. Tennessee Code Annotated, Section 49-1-225(f), is amended by deleting the language "By July 1, 2025, and by each July 1 thereafter" and substituting instead "By February 1, 2026, and by each February 1 thereafter".

SECTION 6. Section 6 of Chapter 1005 of the Public Acts of 2024, is amended by deleting the amendatory language and substituting instead:

(f) Notwithstanding another law to the contrary, the state board of education shall not include in the performance goals and measures for a public school or LEA, the student achievement, student growth, or any other student data that serves as an indicator of performance for a student who enrolls in, or transfers to, the public school or LEA for less than fifty percent (50%) of the school year. The data described in this subsection (f) may be included in the performance goals and measures for the public school or LEA in which the student was enrolled for fifty percent (50%) or more of the respective school year, if applicable.

SECTION 7. Tennessee Code Annotated, Section 49-1-907, is amended by deleting the section.

SECTION 8. Tennessee Code Annotated, Section 49-2-136, is amended by deleting subsection (b).

SECTION 9. Tennessee Code Annotated, Section 49-3-108, is amended by deleting subsection (c) and substituting:

(c)

(1) An LEA's allocated education funding must not decrease more than five percent (5%) from one (1) year to the next year. If an LEA's TISA allocation decreases by more than five percent (5%) from the LEA's TISA allocation for the

prior school year, then the department shall allocate additional funds to the LEA in an amount such that the decrease in the LEA's TISA allocation for the current year is only five percent (5%), except that the department shall not allocate additional funds to an LEA pursuant to this subsection (c) if the department is required to allocate additional funds to the LEA pursuant to subsection (b).

(2) Beginning with allocations for the 2025-2026 school year, for purposes of implementing subdivision (c)(1), the department shall determine whether an LEA is eligible for additional funds pursuant to subdivision (c)(1) based on funds generated by students in non-virtual schools only.

SECTION 10. Tennessee Code Annotated, Section 49-3-359(c)(2), is amended by deleting "June 1" and substituting "July 31".

SECTION 11. Tennessee Code Annotated, Section 49-3-359(d), is amended by deleting the language "BEP" and substituting instead "TISA".

SECTION 12. Tennessee Code Annotated, Section 49-6-1012(g), is amended by deleting the subsection and substituting instead:

(g) Upon request of the education committee of the senate and the committee of house of representatives having jurisdiction over academic acceleration, the department of education shall submit a report to the requesting committee on the implementation of this section.

SECTION 13. Tennessee Code Annotated, Section 49-6-3004(e), is amended by deleting the subsection and substituting instead:

(e)

(1) A local board of education, private school, or church-related school that exceeds the full six and one-half (6 1/2) hours instructional time required by law by one-half (1/2) hour daily for the full academic year must be credited with

the additional instructional time. The excess instructional time may be accumulated in amounts up to, but not exceeding, thirteen (13) instructional days each year, referred to as "stockpile days". Stockpile days may only be applied toward meeting instructional time requirements missed due to:

- (A) Dangerous or extreme weather conditions;
- (B) Serious outbreaks of illness affecting or endangering students or staff;
- (C) Natural disaster or dangerous structural or environmental conditions rendering a school unsafe for use;
- (D) School-wide or district-wide instructional planning meetings, parent-teacher conferences, or other similar meetings; or
- (E) Faculty professional development that is in compliance with state law and the rules and policies established by the state board of education.

(2) Stockpile days may only be used in whole day (six and one-half (6 1/2) hours); half (1/2) day; or one-third (1/3) day increments.

(3) A local board of education, private school, or church-related school shall maintain documentation of the purpose for each stockpile day used as required by the department of education, including reasons for school closures and agendas for professional development for audit purposes.

(4) An unused accumulated stockpile day must not be used for the purpose of ending the school year early and cannot be carried over from one (1) school year to the next.

SECTION 14. Tennessee Code Annotated, Section 49-6-3004(i)(1), is amended by deleting the language "two (2) days" and substituting instead "five (5) days".

SECTION 15. Tennessee Code Annotated, Section 49-6-3004(i)(7)(A), is amended by deleting the subdivision and substituting:

(A) When possible and safe, as determined by the LEA, make school meals available to students in accordance with the school nutrition program requirements on days that remote instruction is provided pursuant to this subsection (i); and

SECTION 16. Tennessee Code Annotated, Section 49-6-3115, is amended by deleting subdivision (f)(2) and substituting:

(2) Subject to appropriation, the department may use funds to administer a grant program to assist LEAs and public charter schools in providing academic tutoring supports to students.

SECTION 17. Tennessee Code Annotated, Section 49-6-4108(a), is amended by deleting the first sentence of the subsection and substituting:

Upon the request of the department of education, each LEA shall submit a report to the department detailing the LEA's use of corporal punishment.

SECTION 18. Tennessee Code Annotated, Section 49-6-4108(c), is amended by deleting the subsection.

SECTION 19. Tennessee Code Annotated, Section 49-6-5001(c), is amended by adding the following as a new subdivision:

(4) A child in the custody of this state must not be denied admission to any school or school facility if the child has not been immunized or is unable to produce immunization records due to being in the custody of this state. The enrolling school shall comply with all federal laws pertaining to the educational rights of children in state custody, including, but not limited to, 20 U.S.C. § 6311(g)(1)(E).

SECTION 20. Tennessee Code Annotated, Section 49-10-1405, is amended by deleting subdivision (a)(1) and substituting:

(1) Remit funds to a participating student's IEA on at least a quarterly basis. Any funds awarded under this part are the entitlement of only the eligible student under the supervision of the student's parent. The maximum annual amount to which an eligible student is entitled under this part is equal to the amount representing the base funding allocation and the average special education funds generated by students with disabilities under the Tennessee investment in student achievement formula for the LEA in which the student's enrollment is reported for purposes of this part; provided, that if a participating student participated in the program in the 2024-2025 school year, then that participating student must not receive an annual amount in the 2025-2026 school year or a subsequent school year that is less than the annual amount the participating student received in the 2024-2025 school year. For purposes of funding calculations under this subdivision (a)(1), each participating student must be counted in the enrollment figures for the LEA in which the student resides and is zoned to attend. The IEA funds must be subtracted from the state funds otherwise payable to the LEA;

SECTION 21. Tennessee Code Annotated, Section 49-10-1402(3)(A), is amended by adding the following as a new subdivision:

(xi) Deafness;

SECTION 22. Tennessee Code Annotated, Section 49-16-211, is amended by deleting subsection (b) and substituting instead:

(b) Total enrollment in all public virtual schools established by an LEA must not exceed one thousand five hundred (1,500) students; however, an LEA with a public virtual school in operation as of January 1, 2025, may use the total number of students who were enrolled in the LEA's public virtual schools as of the 2024-2025 school year as the LEA's enrollment cap. Beginning in the 2025-2026 school year, if each public virtual school in the LEA demonstrates student achievement growth at a minimum level of "at

expectations," as represented by the Tennessee Value-Added Assessment System developed pursuant to chapter 1, part 6 of this title and guidelines adopted by the state board of education pursuant to chapter 1, part 3 of this title, then the public virtual schools in the LEA may exceed the enrollment cap established for the LEA pursuant to this section.

SECTION 23. Tennessee Code Annotated, Section 49-18-109, is amended by deleting the section.

SECTION 24. This act takes effect upon becoming a law, the public welfare requiring it.